Notification Waiver Determination

Australian Rugby League Commission – Novotel Sydney International Airport, NSW

Acquisition	Australian Rugby League Commission Limited (**ARLC**) applied for a notification waiver in respect of its proposed acquisition of 100% of the freehold land interest, buildings, licenses and business assets (both tangible and intangible) of the Novotel Sydney International Airport in Wolli Creek, New South Wales (the **Novotel**) from entities of Charter Hall, as described in the transaction documents provided as part of the application (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	23 October 2026

Parties to the Acquisition	The acquirer, ARLC, is the peak administrative body of the sport of rugby league in Australia and as part of its broader investment strategy owns and operates accommodation and hospitality venues across New South Wales and Queensland. The target, the Novotel, is located at 22 Levey Street, Wolli Creek, New South Wales, and offers hotel accommodation services (and ancillary services related to the operation of a hotel). The vendor is The Trust Company (Australia) Limited as custodian for the Charter Hall Direct Sydney Airport Fund and Charter Hall FLK Funds Management Limited, as trustee of the Charter Hall Direct Sydney Airport Fund. ARLC and the Novotel both supply short-term accommodation services in Sydney, New South Wales.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information provided in the application, the ACCC considers the Acquisition is unlikely to give rise to any material lessening of competition given: a. there is no horizontal overlap between ARLC and the Novotel in the supply of short-term accommodation in the Sydney Airport area, and only a very small overlap in Sydney more broadly b. there are alternative suppliers of short-term accommodation in the Sydney Airport area and in Sydney more broadly.

	In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act